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Statement no. 1 — Collorafi

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PARTIES

From Bernard Collorafi and his companies

SUMMARY SHEET

Statement no. 1 to the experts — Maître Clément for Collorafi · 4 March 1999

Overview: statement (dire) addressed to the experts Jean-Luc Dumont and Alain Martin by Maître Jean-Paul Clément (counsel), on behalf of Mr Bernard Collorafi and the companies SEBOL, B et O and Les Pins, intended to be annexed to the report of the expert assessment ordered by the Court.

Key points

The document answers the ten questions put to the experts by the Court. On management, it stresses that SEBOL's turnover had been raised to about 27,973,000 francs in 1993 and maintained at around 24,750,000 francs in 1995 despite the opening of a Quick, before falling after B et O opened the “Antibes Nord” restaurant on 9 October 1996, then “Antibes Ouest” on 29 April 1997. It argues that McDonald's had never criticised Mr Collorafi's management, having on the contrary congratulated him, and cites a visit report of 19 November 1997 encouraging him to maintain his standards. The statement describes the economic mechanism of the lease-management agreement (location-gérance) (McDonald's owning the land, the building and the business) and notes that the combined fees of the three restaurants rose from about 4.6 to 6.9 million francs.

Significance

The franchisees' contribution to the financial expert assessment on appeal: it seeks to establish before the experts the link between the collapse in turnover and the successive openings decided by McDonald's.

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Source: bernardcollorafi.org/en/documents/statement-to-experts-no1-collorafi-antibes-turnover-decline-1999/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.